TAKAWIRA NHAUDZAWANDA
Versus
THE STATE

HIGH COURT OF ZIMBABWE
MUZOFA AND BACHI-MZAWAZI JJ
CHINHOYI, 26 January, 9 February, 2026.

Criminal Appeal

T.H. Maromo, for the Appellant
G.T. Dhamusi, for the State

BACHI MZAWAZI J: The appellant, *Takawira Nhaudzawanda*, a leader of an Apostolic religious sect, was tried and convicted by the Chinhoyi Regional Magistrate Court, on the 25th of September 2025, of one count of rape in contravention of s 65 (1) of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*] (the Criminal Law Code"). He was sentenced to an effective 20-year jail term. He has approached this court appealing against both conviction and sentence.

The summarized grounds of appeal on conviction are, firstly, on the propriety of the alibi defense investigation and its proof beyond a reasonable doubt. Secondly, the admissibility of the rape report and the credibility of the complainant's evidence against the appellant's defense of fabrication. As regards sentence, appellant challenges the none suspension of the custodial sentence which in his view was harsh and unduly excessive.

The facts are that, the complainant and her family, were church members in a church created and led by the appellant. It is alleged that sometime in January 2025, the appellant proposed love to the complainant, aged 14 at the time. No immediate response came forth prompting the appellant to quiz the complainant on the same issue when they met on an unknown date, but in February 2025. The complainant was on her way from school. The complainant once again on this second encounter, did not respond. The appellant, a 40year old, after failing to receive an answer, dragged the complainant to a garden where he felled her to the ground and raped her once.

On the 12th of April 2025, two months later, the complainant then made the sexual assault report to her mother. She opened up as a result of a lecture the mother was giving to

her after she had noticed that complainant was withdrawn, as if something was bothering her. A police report was then made on the 14th of April after obtaining a medical report. The medical report disclosed a partially healed tear at 6 o'clock.

The appellant denied ever proposing love or raping the complainant. He raised an alibi defense that he was not in the *Zvimba* area where the offence was committed but was in *Raffingora* at the material time in the month of February 2025. He cast aspersions on the character of the complainant as being that of promiscuity and of sexual involvements with other church youths. He stated that the offence was trumped up to fix him as the complainant's mother wanted to resume a previous estranged affair she once had with him, but he rejected her.

Two defense witnesses called to testify confirmed the religious excursions they undertook in the company of the appellant in and around *Banket, Mutorashanga* and *Gokwe*, in more or less the same period of February 2025. Of note, the appellant in his defense outline he had also included the other two areas above which he did not disclose to the investigating officer.

It is on record that, the investigating officer who was called to testify, confirmed that she received the alibi report at the commencement of investigations but she failed to investigate the particular alibi as the appellant had not supplied her with sufficient details. She admitted being told that appellant had visited and was attending to his sick father but she elected to investigate only from appellant's neighborhood. Under cross examination before the trial court, the investigating officer admitted that at the time she was assigned this case she was very new in the force and not familiar with her investigating roles, even the correct way of compiling a warned and cautioned statement.

The trial court found both State witnesses evidence credible. The complainant's mother's evidence to a greater extent corroborated that of the complainant. He dismissed the appellant's alibi defence stating that the accused did not give the investigating officer sufficient detail to work with.

On appeal *Mr Maromo*, counsel for the appellant, submitted that the state had failed to evidentiary rebut the alibi defence. It is his argument that no proper investigations to see whether the appellant's alibi checked out, were done due to the investigating officer's naivety as admitted to in court. In support of his argument the appellant relied on several cases chief

among them, *S* v *Midzi* HH 26/25, whose dictum is the failure by the police to adduce evidence supporting or rebutting the alibi results in the success of the defense.

In addition, *Mr. Maromo* argues that the rape report was not made timeously and voluntarily therefore inadmissible. He says, the complainant should have informed a chain of people who were readily at her disposal, if indeed her mother was not at home. These included, the complainant's grand mother, sister, father and a close liaison *Saru*. They submitted that the complainant's mother, from the evidence on record was home with her from 28 February to 07 March 2025. They query why the report then waited until the 12th of April. The defense counsel, further asserts that, if the mother had not coerced the complainant into divulging the information she would not have done so in her own volition. As such the report was involuntarily made.

Mr Maromo, further attacked the complainant's credibility citing discrepancies on dates the complainant claimed she informed her friend *Saru*. In addition, the defense relied on the admissions made by the complainant's mother that indeed she shared a prior love history and triangle with the appellant which they say influenced the falsity of the allegations.

With respect to sentence, the appellant queried why the trial court failed to suspend part of the sentence as is ordinarily the norm. As a result, that departure led to an unjustifiably harsh and excess penalty of 20 years imprisonment in the face of strong mitigation. The cases of *Muhomba* v *The State* SC 57-13, *S* v *Mkombo* HB 140-10 and *Munakamwe* v *The State* SC 121-23 amongst several others were relied upon by the appellant.

The respondent opposed the appeal *in toto.* They maintained that the alibi defense must fail as no sufficient information was given to enable the police to investigate any further. They contend that, the complainant's credibility cannot be questioned as it was consistent and was corroborated by the witnesses. In respect to sentence, *Mr Dhamusi* for the respondent, stated that there was nothing amiss about the sentence as it is in tandem with other decided cases, as well as, the statutory penalty and presumptive sentence advocated by the Sentencing guidelines.

The issues hinge on the grounds of appeal raised. That is,

(i) Whether or not the court erred and misdirected itself in dismissing the appellant's alibi defense?

(ii) Whether or not the complainant's report is admissible?

(iii) Whether or not the complainant was credible?

(iv) Whether or not the trial court imposed a too severe sentence that induces a sense of shock?

Analysis

Whether or not the court erred and misdirected itself in dismissing the appellant's alibi defense?

The law on the defense of alibi has been exhaustively traversed in this and other jurisdictions. It is a defense open to an accused person distancing himself from the place where the offence had been allegedly committed and the time.[1] Like in most criminal cases, the accused has no onus to prove his alibi defense. That burden of proof as is the norm lies with the State.[2] What matters most is that for the defense to hold it must be disclosed at the time of arrest or soon after. [3]It may be that through the rigors of the arresting processes the accused may omit to mention the defense. The window will still be open, as he may do so at the prosecution set down desk. The prosecution still has the powers to order investigations.[4]

Caselaw abundant, states that for as long as the defense of the alibi is given before the defense outline, allowing time for investigation by the police or the prosecution then it suffices as a defense.[5] It is not alien, again that the defense may be raised for the first time in court. [6]In our jurisdiction it is considered as an afterthought and may not carry much weight. [7]In South Africa it can be raised in court but it will be a mammoth task to prove and it will be considered alongside the totality of evidence.[8]

On point are the following cases.

Kereke v *Maramwidze & Ors* SC 53-24 summarises the alibi defence, at paras 63-64 stating,

> "The treatment of an *alibi* is settled in this jurisdiction. The manner in which courts must approach the defence of alibi has been set out in several decisions of this Court and the High Court. Some of the relevant cases, are *S* v *Manuwa* HH 47-12 and *S* v *Masawi*, 1996 (2) ZLR 472. The principle that emerges from these cases is that the prosecution bears the onus to

[1] See S v Musakwa 1995 (1) ZLR 1 (S)S v Chipuve HCC 51/23 S v Madziwa S-191-90.

[2] See Matanga v The State SC 17-15 at p 6.

[3] S v Malefo en Andere 1998 (1) SACR 127

[4] See, S v Thebus and anor 2003 (6) SA 505 (CC)paras 64, 65, 67, 68, 90 & 97. 2003

[5] S v Thebus above,

[6] J R Milton *South African Criminal Law and Procedure* Vol II 3 ed at 461

[7] S v Musakwa supra Sv Musakwa 1995ZLR 1 (S) Sv Masawi 1996ZLR2(2)

[8] D T Zeffertt & A P Paizes *The South African law of evidence* 2 ed (2009) at 971

disprove beyond a reasonable doubt the veracity of the defence of an alibi. On the other hand, an accused person who raises such a defence has an evidentiary burden to prove on a balance of probabilities that it is reasonably possibly true. The defence should be raised at the earliest possible opportunity after an accused person becomes aware that he is under investigation, preferably before he proffers his defence outline in court. This is because the police must be afforded an opportunity to investigate it. Where the defence is raised in the defence outline or at trial, the evidentiary burden to establish it on a balance of probabilities falls on the accused person. However, in terms of s 18 (4) of the Criminal Law Code, the prosecution retains the overall onus of establishing beyond a reasonable doubt that the alibi is false." (My emphasis)

In *Maila v The State* (429/2022) [2023] ZASCA 3 , it was highlighted that,

It is trite that an accused person is entitled to raise any defence, including that of an alibi – that at the time of the commission of the crime, they were not at the scene of the crime but somewhere else. They can also lead evidence of a witness(es) to corroborate them on their whereabouts at the critical time. Nevertheless, it is trite that an accused person who raises the defence is under no duty (as opposed to that of the State) to prove his defence. If the defence is reasonably possibly true, they are entitled to be discharged and found not guilty.

In *S v Malefo en andere* 1998 (1) SACR 127 (W) at 158a - it was pointed out that,

'(*a*) There is no burden of proof on the accused to prove his alibi.
(*b*) If there is a reasonable possibility that the accused's alibi could be true, then the prosecution has failed to discharge its burden of proof and the accused must be given the benefit of the doubt…

See, Van Der Merwe in the section '*The Evaluation of Evidence'* in PJ Schwikkard & SE van der Merwe (in collaboration with DW Collier) *Principles of Evidence* 3ed (revised) (2009) at page 550,

An essential element of the defense of alibi is that the accused must supply specific details that assist the police in their investigations instead of sending them on a wild goose chase. In my view, it is not enough to just mention a large geographical area without narrowing down to the exact place where the person was. If the accused has no actual address which may be common, then a description of the area is necessary. Further apart from the exact time frames, if people are involved then their specific names must be included. If one stopped over for a beer, coffee or drink then it will be of vital importance to state the name of the cafeteria, restaurant or bar. So, it is imperative that the person who raises the defense of an alibi gives the relevant authorities enough ammunition, or wholesome information to work with or kickstart their investigations.

In this case, the defense argues that the appellant raised an alibi which was not competently investigated by an equally inexperienced police officer. The investigation of the

alibi is not restricted to the alternative place where the accused claims to have been at the time the offence was committed. Investigations can still be made in the area where the offence was committed. In this case, the investigating officer did investigate in *Zvimba*, amongst the appellant's own congregants and they confirmed his presence in February 2025. The complainant said he was around *Zvimba*, in February 2025. The complainant's mother also corroboratively stated that he was in the *Zvimba* area in the month of February2025. This in all honesty, is one dimension of the investigation of an alibi, to confirm or dispel the presence of the accused in the alleged crime location.

The other dimension of course is to, then investigate from the place where the suspect alleges, he was and the people he was with. This also means when the alibi is a spouse or relative or any person with interest who may be influenced to lie or exaggerate in order to protect the culprit, it then suffices that investigators employ their detective skills and investigate from any independent source to rebut or support that alibi, for example neighbors, other tenants in a shared rented property, even family members present at the time and so on.

So, in this case some investigation was indeed done. However, without the details of those who supplied the investigator with the information she relied on to then say appellant was in the area, her investigation fell short. Moreso, when the people who informed her of the appellant's presence in the locality within the material month of February, 2025 were not called to testify. As we highlighted in the case of *S v Chipuve* HCH51/2023, there is need to provide tangible proof that certain identified people were interviewed at specific addresses.

Nevertheless, had the appellant supplied the police officer with sufficient details to enable her to direct her investigation as to where he claimed was at the crucial time, there is no doubt that she would have completed the cycle of the alibi investigation. It is apparent that, from the investigating officer's testimony she was only informed that the appellant was attending to his sick father in *Raffingora.* Going by this averment, no other details, as to the exact location of the father in *Raffingora*, his names, amongst other important details where supplied.

However, the appellant in court, under cross examination shot himself on the foot. He said whilst he informed the officer of his alibi over the phone, he did not specify the exact sick person he was attending to in the month of February 2025. This casts the net of investigation even wider. Bearing in mind that, investigations do expose lies and cement truths, without a

name or proper identification of the sick person, how on earth was the police supposed to investigate?

What this change of goal posts illustrates is that, if the appellant stuck to the sick father story the net will have closed in somehow. The appellant's defense witnesses did not do much to salvage his defense. Though they said they accompanied him on his pilgrimage to *Banket, Raffingora and Gokwe,* none of them mentioned that the appellant attended to a single sick person for a whole month let alone the month of February 2025. One even said the appellant was at the witnesses 'residence within the same *Zvimba* area during this period. It can safely be concluded that the alibi defense from a totality of evidence surrounding it was not reasonably possibly true. It lost its footing. It down right shows that there was no alibi at all.

On assessment, of the evidence in totality, we are inclined to agree with *Mr Dhamusi* for the State and the trial court's finding on the aspect of the alibi. It is not all about the naivety of the newly appointed investigating officer, it is about the alibi defense she received, which lacked specificity and which in our view was non-existent.

Thus, the trial court did not err in findings dismissing the alibi defense. The first ground of appeal fails.

Whether or not the complainant was credible?

We failed to see anything that leads to the conclusion that the complainant's evidence was not credible. She was consistent and honest. Her mother corroborated her evidence almost verbatim. The law is very clear on the issue of interfering with the trial court's finding on credibility. Whether or not the complainant's report is admissible?

Barros & Anor v *Chimphonda* 1999 (1) ZLR 58 (S) at 62 E-H to 63D is good authority on the principle that a court of appeal does not generally interfere with the findings of a trial court on the credibility of witnesses unless the findings are not supported by the evidence adduced during the trial. This puts to rest the third ground of appeal. It fails.

Whether or not the complainant's report is admissible?

This ground speaks to the time lapse between the commission of the offence and the manner in which the offence came to light. Contextually, we must hasten to highlight that the legal principle that each case revolves on its own merit holds more in rape cases. We agree with the academic research that says rape victims react differently to sexual violation cases. Especially children,

factors like trauma, shock, profound shame, cultural taboos, self-apportionment of blame, guilt all play a role in the timing of making the report and voluntariness in making the report. [9]Failure of the complainant to report an alleged rape as soon as possible cannot be 'the benchmark for determining whether or not a woman has been raped', as stated in *Monageng v S* [2008] ZASCA 129; [2009] 1 All SA 237. .

Two months, is not that inordinate where a person yields so much religious power in the community. There was no proof of assaults or leading words from the mother denting the voluntariness of the report. The fact that the mother was home from March 2025 and that there were other people to whom the complainant could have reported to is of no moment.

It took the victim, time to process and accept what had happened to her. The visible or noticeable sulking meant, she was in a state of mental turmoil, weighing the repercussions of such a report and the best way she could divulge the information and to who. Mothers are indeed quick to notice the mood changes in their children. It is one of their parental duties. She found a diplomatic way to make the teenage relax and open up. There is no evidence of the report being involuntarily extracted. In fact, a two months' time lapse is not inordinate for crimes dealing with sexual violations and the accompanied psychological effects that differ from person to person.

> I need not say more than refer to expert and academic research. Authors and experts in the field of psychology and criminology in UNODC, *Handbook for the Judiciary on Effective Justice Responses to Gender-based Violence against Women and Girls*, at p25, state that,

'Each victim reacts differently after a violent act. They may try to dismiss or ignore what happened and even normalise it by having contact with the perpetrator in the future. They may only decide to report once, they are supported by a family member or when a friend confirms that this behaviour is indeed wrong. If the perpetrator is considered as a trustful person, victims may take years to link their situation to violence and recognise it as such. Sexual violence victims often experience a profound sense of shame, stigma and violation'. What is important is that the first report is made at the first opportunity available to the victim of sexual violence. In most cases, when they feel safe to do so, or they do not fear reprisals.'

See, J R Milton *South African Criminal Law and Procedure* Vol II 3 ed at 461. and D T Zeffertt & A P Paizes *The South African law of evidence* 2 ed (2009) at 971.

[9] UNODC Handbook for the Judiciary on Effective Justice Responses to Gender-based Violence against Women and Girls, at 25

Further, we are not convinced that the complainant was of loose morals. It seems after committing the offence the appellant embarked on a mission to cover his tracks. The *Benji* story was initiated and put into motion by the appellant as a church leader and founder. The story failed to gain momentum. So did the funeral disappearance with a boy incident. The witness, complainant's mother rebutted all the incidences.

In that regard, the rape report was made timeously and voluntarily in consonance with the law as set out in the celebrated case of *S v Banana* 2000(1) ZLR 6707(S) at p 616. In this case the Supreme Court stated that a complaint of a sexual offence, that is made soon after its occurrence is admissible to show consistency of the complainant's evidence and the absence of consent. The timeous complaint serves to rebut any suspicion that the complainant fabricated the allegation.

In the *Banana* case, *supra*, GUBBAY CJ (as he then was) emphasized that:

> "The requirements of admissibility of evidence of a complaint are:
>
> 1. It must have been made voluntarily and not as a result of questions of a leading and inducing or intimidating nature. See ***R v Petros 1967 RLR 35 GD at 39G-H***
> 2. It must have been made without undue delay and at the earliest opportunity, in all the circumstances, to the first person to whom the complainant could reasonably be expected to make it. See ***R v C 1955(4) SA 40***."

GILLESPIE J in *S* v *Zaranyika*, 1997 (1) ZLR 539, remarked that:

> "Both the promptitude and the spontaneous or voluntary nature of the complaint are important elements rendering such a complaint admissible."

In that regard, the ground of admissibility of the rape report also fails. Moving onto the last ground,

Whether or not the trial court imposed a too severe sentence that induces a sense of shock?

We agree with the defence, an effective 20year imprisonment sentence is on the extreme, especially in an offence with a statutory mandatory minimum penalty of 15 years. The defence raised an interesting debate citing the cases of *State v Matibeki* HB-76/24 and *State v Chamatya* HH-51/24. These are somehow two conflicting judgments on whether or not it is legally permissible to suspend the 15-year mandatory rape term imposed by statute. As it stands, both cases are law. Until such time the Supreme Court or the legislature intervenes, both are of equal force. Guided by the *S v Matibeki* above, we are of the view that a sentence of 15 years with 5

years suspended for 5 years, on condition accused does not commit any offences involving sexual assaults, or rape, upon which if convicted will be sentenced to imprisonment without an option of a fine will meet the justice of this case.

Accordingly, the appeal is a partially allowed.

It is ordered that;

1. The appeal against conviction is dismissed.
2. The appeal against sentence partially succeeds.

a. The sentence of the trial court is set aside and substituted with accused is sentenced to 15 years imprisonment with 5years suspended for 5 years on condition accused does not commit any offences involving sexual assaults, or rape, upon which if convicted will be sentenced to imprisonment without an option of a fine will meet the justice of this case. Ten years effective.

Bachi Mzawazi J
Muzofa J, Agrees

Choga and Associates, Appellant's Legal Practitioners
The National Prosecuting Authority, Respondent's Legal Practitioners